

UNITED STATES BANKRUPTCY COURT
DISTRICT OF OREGON

In re

Case No. _____

☐ Amended

Debtor

**DEBTOR'S MOTION TO REOPEN
CHAPTER 7 OR 13 CASE AND, IF
APPLICABLE, TO VACATE DISMISSAL**

Instruction to Filer: File this motion with the applicable motion-to-reopen fee, if required (exceptions are noted below), and any unpaid balance of the original filing fee. Fees are found at www.orb.uscourts.gov/court-fees. Self-represented debtors must pay the fee by cashier's check or signed money order (if by mail) or cash, money order, cashier's check, ACH direct deposit, credit card, or debit card (if in-person at the clerk's office).

1. The debtor moves for an order reopening the case and, if applicable, vacating the dismissal of the case for the following reason [*check box for each reason that applies*]:

- ☐ To pay overdue filing fees in order to receive a discharge.
- ☐ To file documents necessary for discharge [*for example, certificate of completion of personal financial-management course*].
- ☐ To file documents listed on an *Order and Notice of Time to File Document(s)* so the case may proceed. The debtor must file the documents within 14 days of entry of an order to reopen.
- ☐ To file a complaint or motion based upon an alleged violation of the terms of the discharge under 11 U.S.C. § 524. No motion to reopen fee is required.
- ☐ To redact a record already filed in the case pursuant to Federal Rule of Bankruptcy Procedure (FRBP) 9037. If redaction is the only reason for reopening, no motion to reopen fee is required.
- ☐ Other:

Note that the court will not reopen (a) a case in which a discharge has been entered to accept or act upon a reaffirmation agreement or (b) a no-asset case in order to add a creditor.

2. The following grounds exist under FRBP 9024 for entry of an order reopening and, if applicable, an order vacating the dismissal [*check at least one and provide details in paragraph 3*]:

- ☐ Mistake, inadvertence, surprise, or excusable neglect.
- ☐ Newly discovered evidence that, with reasonable diligence, could not have been discovered in time to move for a new trial.
- ☐ Fraud, misrepresentation, or misconduct by an opposing party.
- ☐ Other:

3. The debtor offers evidence to support a finding that grounds exist as indicated above (*check one*):

- ☐ In an affidavit or declaration attached to this motion.
- ☐ As follows:

Signature of Debtor's Attorney, if any Date

I declare under penalty of perjury that the foregoing is true and correct.

Signature of Debtor (required) Date

Signature of Joint Debtor (if applicable)

Debtor's Current Service Address